



PUBLIC VERSION

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Re: EAPA Consolidated Case No. 8093 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Consolidated Investigation 8093 (EAPA Cons. 8093), U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Strong Medical, doing business as Strong Manufacturers (collectively, Strong Medical), and Vesta Global Trading, doing business as Vesta STL LLC (collectively, Vesta STL), entered merchandise covered by the antidumping duty (AD) and countervailing duty (CVD) orders A-570-920 and C-570-921 on lightweight thermal paper (thermal paper) into the customs territory of the United States through evasion.¹

Substantial evidence demonstrates that Strong Medical and Vesta STL imported Chinese-origin thermal paper that had been transshipped through Malaysia. As a result, no cash deposits were

¹ See *Antidumping Duty Orders: Lightweight Thermal Paper from Germany and the People's Republic of China*, 73 Fed. Reg. 70959 (Nov. 24, 2008) and *Lightweight Thermal Paper from the People's Republic of China: Notice of Amended Final Affirmative Countervailing Duty Determination and Notice of Countervailing Duty Order*, 73 Fed. Reg. 70958 (November 24, 2008) (the *Orders*).

applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

I. Background & Procedural History (Pre-Interim Measures)

Allegation, Formal Receipt, and Initiation

On August 27, 2024, the Paper Receipts Converting Association (the Alleger or PRCA)² filed EAPA allegations 8093 and 8101 claiming that U.S. importers Strong Medical and Vesta STL (collectively, the Importers) were evading the *Orders* by importing thermal paper from China into the United States that was transshipped through Malaysia. On September 27, 2024, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, formally acknowledged receipt of the Alleger's properly filed EAPA allegations concerning evasion by the Importers, in accordance with 19 C.F.R. § 165.12(a).³ TRLED found the information provided in the Allegations reasonably suggested that the Importers entered covered merchandise into the customs territory of the United States through evasion.⁴ Consequently, CBP initiated investigations on October 21, 2024, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as "EAPA."⁵

According to the Allegations, Strong Medical and Vesta STL declared thermal paper produced in China as a product of Malaysia. The PRCA notes that both CBP (in past rulings) and the scope of the *Orders* state that the country of origin of thermal paper is where the paper is thermal coated. The process of slitting thermal paper jumbo rolls to a size that will fit in a thermal printer does not change the country of origin (*i.e.*, the scope of the *Orders* covers thermal paper whether in the form of jumbo rolls or converted rolls).⁶ The PRCA noted that industry publication *Laves Chemie* indicates that there is no capacity to coat thermal paper in Malaysia.⁷ Further, import data indicates that Malaysia imports thermal paper, the largest volume coming from China.⁸ The PCRA alleges that evasion may be taking two forms: Malaysian exporters

² See 8093 and 8101 Letters from the PRCA, "Duty Evasion and Allegation Against Importers of Thermal Paper from The Republic of China, Germany, Japan, and The Republic of Korea Pursuant to the Enforce and Protect Act," dated August 27, 2024 (collectively, the Allegations) at 1. The Alleger is a trade or business association in which a majority of the members manufacture, produce, or wholesale a domestic like product in the United States; thus, pursuant to 19 C.F.R. § 165.1(4), the PRCA meets the definition of an interested party that is permitted to submit an EAPA allegation.

³ See CBP's Email, "EAPA 8093: Receipt of Email," dated September 27, 2024, receiving both cases 8093 and 8101.

⁴ See the Allegations.

⁵ CBP consolidated EAPA investigations 8093 and 8101 into a single investigation. See CBP's Memorandum, "Initiation of Investigation for EAPA Case Number 8093," dated October 21, 2024.

⁶ See Allegations at 8 and 9 and Exhibits 16 and 17.

⁷ *Id.* at 11 and Exhibit 18.

⁸ *Id.* at 11-12 and Exhibits 19 and 20.

may be importing jumbo rolls from China and converting them in Malaysia, or transshipping converted rolls of thermal paper from China.⁹

The PRCA submitted shipping data from Datamyne showing that Strong Medical imported four shipments of thermal paper from Malaysian company Wingle Industrial (Malaysia) Sdn. Bhd. (Wingle) from [DATE RANGE], and Vesta STL imported one shipment of thermal paper from Wingle on [DATE], and one shipment from Malaysian company Sailing Paper (Malaysia) Sdn. Bhd. (Sailing Paper) on [DATE]. Each of these shipments to the United States was identified with country-of-origin (COO) Malaysia.¹⁰

The PRCA alleged that Sailing Paper is selling Chinese-origin thermal paper to U.S. importers. The PRCA provided a screenshots of the website for Sailing Paper’s Chinese parent company, Sailing POS Consumables, showing that it had thermal coating capacity in China.¹¹ Further, PRCA provided information from Sailing Paper’s website touting the tariff benefits of importing thermal paper identified as “Made in Malaysia,” as well as [INFORMATION SOURCE] indicating that Sailing Paper was established in Malaysia “specially” for the purpose of avoiding antidumping duties, and that the Sailing Paper’s product is converted from paper produced by [COMPANY NAME].¹²

The PRCA alleged that Wingle is the same company as Sailing Paper. The PRCA noted that both companies share the same physical address in Malaysia, and that Wingle is listed on the website of Sailing Paper’s parent company.¹³

Post Initiation

On October 30, 2024, CBP issued two CF28s to Strong Medical Partners for entry numbers [#]6451 (Entry 6451) and [#]0536 (Entry 0536), and two CF28s to Vesta STL for entry numbers [#]6866 (Entry 6866) and [#]2370 (Entry 2370) requesting various information, including documentation substantiating the manufacturers’ purchase of raw materials, the

⁹ *Id.* at 10.

¹⁰ *Id.* at 13-15 and Exhibits 14 and 15.

¹¹ *Id.* at Exhibit 27.

¹² *Id.* at Exhibit 29 and 30.

¹³ *Id.* at 15 and Exhibits 34 and 27.

production of the covered merchandise, and entry documentation.¹⁴ Strong Medical and Vestal STL submitted responses to the CF28 requests.¹⁵

Both Strong Medical and Vesta STL reported that Wingle, also doing business as Actan Malaysia SDN Berhad, supplied their thermal paper imports from Malaysia for Entries 6451, 0536, 6866 and 2370.¹⁶ In a previous investigation CBP found that Actan (*i.e.* Wingle) was transshipping Chinese goods. Specifically, in EAPA case 7724, CBP determined that substantial evidence on the record showed Actan imported Chinese-origin thermal paper jumbo rolls from Sailing Paper in China into Malaysia.¹⁷

CBP's CF28 requested pictures and descriptions of capabilities for each piece of equipment in their supplier's factory, as well as a flow chart of the production process.¹⁸ Strong Medical and Vesta STL both submitted information regarding Wingle's production process including pictures of [NARRATIVE].¹⁹

Strong Medical and Vestal STL did not submit photographs or descriptions of machinery at Wingle that would indicate that Wingle is capable of producing paper from pulp or coating paper to become thermal paper. As stated above, the country of origin of thermal paper is the country of production of the jumbo thermal paper rolls. Therefore, according to the plain language of the *Orders*, the activities undertaken by Wingle in Malaysia, as described in the CF28 responses, would not change the country-of-origin from China.

Strong Medical and Vesta STL reported in their CF28 responses that Wingle purchased jumbo thermal paper rolls from a German source. However, Strong Medical and Vesta STL's documentation contained multiple discrepancies.²⁰ For example, Strong Medical provided the same German COO certificate and shipment documentation to support Wingle's purchase of jumbo thermal paper rolls from Germany for the production of both Entry 6451 and Entry 0536, but the raw material documentation does not align with Wingle's production and export information.²¹ For Entry 6451, Strong Medical provided Wingle's work order and job production orders for the production of [#] rolls ending on December 23, 2023. However, for

¹⁴ See the CF28 request for entries [#]6451 and [#]0536 issued to Strong Medical on October 20, 2024 (Strong Medical's CF28), and request for entries [#]6866 and [#]2370 issued to Vesta STL on October 20, 2024 (Vesta STL's CF28) (Collectively, Importers CF28 Requests).

¹⁵ See Strong Medical's CF28 Response dated December 9, 2024 (Strong Medical's CF28 Response), Vesta's Entry 2370 CF28 Response, dated November 25, 2024 (Vesta's Entry 2370 CF28 Response) and Vesta's Entry 6866 CF28 Response, dated November 25, 2025 (Vesta's Entry 6866 CF28 Response).

¹⁶ See Strong Medical's CF28 Response at Exhibits 2b, 2c, 2e, and 3b, as well as Vesta's 2370 CF28 Response at Exhibit 2E.

¹⁷ See CBP's Memorandum to the File, "Notice of Initiation 8093 Supporting Documents," dated January 21, 2025.

¹⁸ See Importers' CF28 Requests.

¹⁹ See Vesta STL's 2370 CF28 Response at Exhibit 2E and Strong Medical's CF28 Response at Exhibit 2e.

²⁰ See Vesta STL's 2370 CF28 Response at Exhibit 2B and Strong Medical's CF28 Response at Exhibit 2e and 2j.

²¹ See Strong Medical's CF28 Response.

Entry 6451, Strong Medical also provided a packing list showing that Entry 6451 was packed into a container on November 20, 2023. Because it is not possible for production to occur after exportation, CBP cannot rely on the information submitted by Strong Medical for Entry 6451.²² For Entry 0536, Strong Medical failed to provide any production documentation.²³ Without production documentation, CBP cannot rely on Strong Medical's documentation to determine a COO.

Vesta STL's CF 28 response also contained discrepancies.²⁴ For example, Vesta submitted the same raw material and production information for both Entry 2370 and Entry 6866. Vesta reported that the jumbo thermal paper rolls used in the production of Entries 2370 and 6866 arrived in Malaysia from Germany on October 11, 2023. However, Vesta also reported that finalized product for Entry 2370 was shipped to the United States on August 23, 2023, with a Malaysian COO certificate dated August 30, 2023. Also, by using the same production documentation for both Entry 2370 and Entry 6866, Vesta only accounted for half of the production needed ([#]) to fill both shipments. Therefore, due to the discrepancies in the documents, CBP could not rely on the German jumbo roll documentation as sufficient proof of COO for the jumbo rolls.

CBP found other evidence suggesting that China was the COO of Strong Medical and Vesta STL's imports. In their CF28 responses, both Strong Medical and Vesta STL report paying a Chinese company, Sailing International located in Hong Kong, for thermal paper.²⁵ CBP research indicated that Wingle is related to Sailing International, a known Chinese producer of thermal paper. Sailing International's website lists Wingle as its Malaysian factory.²⁶ Additionally, in a previous investigation CBP found that Wingle was shipping Chinese goods. Specifically, in EAPA case 7724, CBP determined that substantial evidence on the record showed Wingle imported Chinese-origin thermal paper jumbo rolls from Sailing Paper in China into Malaysia.²⁷ Finally, as provided by the Allegor in the Allegations, Sailing Paper's website touts the tariff benefits of importing thermal paper identified as "Made in Malaysia."²⁸ The Allegations also provided [NARRATIVE] indicating that Sailing Paper was established in Malaysia "specially" for the purpose of avoiding antidumping duties, and that the Sailing Paper's product is converted from paper produced by [COMPANY NAME].²⁹

²² *Id.*

²³ *Id.*

²⁴ See Vesta STL's CF28 Responses.

²⁵ See Strong Medical's CF28 Response, Vesta's Entry 2370 CF28 Response and Vesta's Entry 6866 CF28 Response.

²⁶ See CBP's Memorandum to the File, "Notice of Initiation 8093 Supporting Documents," dated January 21, 2025.

²⁷ *Id.*

²⁸ See Allegations at Exhibit 29 and 30.

²⁹ *Id.*

Between the discrepancies in the CF28 responses and the connections between a known Chinese producer of thermal paper and Wingle, combined with the evidence in the Allegation that Sailing Paper was [NARRATIVE], CBP found there was reasonable suspicion that these Importers evaded duties.

II. Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence if there is reasonable suspicion that such merchandise covered by the *Orders* was entered into the United States through evasion. CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24. After evaluating the information on the record, on January 28, 2025, CBP issued its Notice of Initiation and Interim Measures.³⁰

In accordance with 19 U.S.C. § 1517(e), CBP suspended the liquidation of each unliquidated entry of covered merchandise that entered on or after October 21, 2024, the date of the initiation; extended the period for liquidating each unliquidated entry of covered merchandise that entered before the date of the initiation of the investigation; and took additional measures necessary to protect the revenue of the United States.

III. Post-Interim Measures

Requests for Information

On February 18, 2025, pursuant to 19 C.F.R. § 165.5, CBP sent a Request for Information (RFI) to Wingle, the purported manufacturer, requesting information on the manufacturer's shipments to the Importers, as well as the manufacturer's production capabilities and capacities.³¹ Wingle did not respond to CBP's RFI. CBP confirmed delivery of the RFI *via* FedEx.³² CBP provided

³⁰ See CBP's Memorandum, "Notice of Initiation of Investigations and Interim Measures – EAPA Cons. Case 8093," dated January 28, 2025 (Notice of Initiation).

³¹ See CBP's Letter to Wingle, "EAPA 8093-Request for Information," dated February 18, 2025 (Wingle RFI).

³² See CBP's Memorandum, "Proof of Delivery – Request for Information," dated March 11, 2025.

Wingle with a second opportunity to respond to the RFI on March 12, 2025.³³ CBP did not receive a response from Wingle to this second request.

CBP also sent an RFI to the importer Vesta STL on February 18, 2025, pursuant to 19 C.F.R. § 165.5.³⁴ On March 17, 2025, Vesta STL submitted its RFI response.³⁵ Vesta reported that Wingle was its “one and only supplier of the covered merchandise.”³⁶ Vesta STL stated in its RFI response that it “has no formal procedures to safeguard against the transshipment of covered merchandise,” and that it “did not conduct any factory visits” nor “engage in periodic monitoring of production.”³⁷

Likewise, CBP also sent a RFI to the importer Strong Medical on February 18, 2025, pursuant to 19 C.F.R. § 165.5.³⁸ CBP sent the RFI to [EMAIL ADDRESS] which is the contact information listed for Strong Medical in its CF28 response.³⁹ On March 17, 2025, Strong Product Partners LLC (SPP) responded to the RFI claiming that it is a separate legal entity from Strong Medical.⁴⁰ SPP reported that it acquired certain Strong Medical assets on November 22, 2024, that it assumed only liabilities related to acquired assets, and that it did not possess details regarding Strong Medical’s import activities.⁴¹ On March 18, 2025, CBP sent an RFI to Strong Medical.⁴² On April 18, 2025, Strong Medical submitted its RFI response.⁴³ Strong Medical confirmed that SPP acquired certain assets on November 22, 2024.⁴⁴ Strong Medical reported Wingle as its only supplier of thermal paper.⁴⁵ When asked by CBP “whether your company has implemented safeguards to prevent unlawful transshipment of covered merchandise”, Strong Medical replied “NA” and reported that procedures to ensure that the correct manufacturer and country of origin is identified and that information declared to CBP is accurate is “outsourced to customs broker.”⁴⁶

³³ See CBP’s Email, “8093 [COMPNAY NAME] Request for Information,” dated March 12, 2025 (Wingle RFI Resend).

³⁴ See CBP’s Letters to the Importers, “EAPA 8093 Request for Information,” dated February 18, 2025 (Importers’ RFIs).

³⁵ See Letter from Vesta STL, “Vesta Global Trading Response to Request for Information,” dated March 17, 2025 (Vesta STL RFI Response).

³⁶ *Id.* at 11.

³⁷ *Id.* at 15.

³⁸ See Importers’ RFIs.

³⁹ See Strong Medical’s CF28 Response.

⁴⁰ See SPP’s Letter, “Response to February 18, 2025, Request for Information (RFI)-EAPA Case 8093 Investigation,” dated March 18, 2025.

⁴¹ *Id.* at 2.

⁴² See CBP’s Letter to Strong Medical, “EAPA Cons. 8093 Request for Information,” dated March 18, 2025.

⁴³ See Letter from Strong Medical, “Responding to EAPA Case No. 8093,” dated April 18, 2025.

⁴⁴ *Id.* at 1.

⁴⁵ *Id.* at 10.

⁴⁶ *Id.* at 13 and 14.

Voluntary Factual Information and Written Arguments

On May 9, 2025, CBP extended the time for parties to comment on RFI responses and submit voluntary factual information until May 22, 2025.⁴⁷ CBP did not receive any comments on RFI responses, voluntary factual information, or other written arguments.

IV. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” Evasion is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁴⁸

Adverse Inferences

Because Wingle did not reply to the RFI requests, CBP’s ability to obtain information for its investigation was significantly impeded. EAPA’s regulations at 19 C.F.R. § 165.6(a) state that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion....”⁴⁹ Because Wingle did not reply to the RFI requests, CBP finds that Wingle did not cooperate nor comply with CBP’s investigation to the best of its abilities.

Specifically, Wingle failed to respond to CBP’s RFI, sent February 18, 2025, and on March 12, 2025,⁵⁰ in which CBP requested information regarding sales, production, and accounting practices. Without this requested information, CBP lacks information to contradict the Alleger’s Allegations that Wingle is transshipping Chinese-origin thermal paper through Malaysia.

⁴⁷ See CBP’s Memorandum, “EAPA Case No. 8093 – Extension of Time to Comment on Request for Information Responses and Voluntary Factual Information Deadline,” dated May 9, 2025.

⁴⁸ See 19 C.F.R. § 165.1.

⁴⁹ See also 19 U.S.C. § 1517(c)(3)(A).

⁵⁰ See Wingle RFI and Wingle RFI Resend.

Notice of Determination as to Evasion

As such, CBP is drawing inferences adverse to the interests of Wingle from facts otherwise available on the record and relying on information submitted to CBP, including, but not limited to:

1. Malaysia has no capacity to coat thermal paper, according to an industry publication.⁵¹
2. The Importers CF28 responses do not indicate that Wingle has thermal paper production capacity in Malaysia.⁵²
3. Import data indicates that Malaysia imports thermal paper from China.⁵³
4. Wingle and Sailing Paper share a physical address in Malaysia, indicating that they are the same company.⁵⁴ Sailing Paper is a subsidiary of Chinese company Sailing POS, which produces thermal paper.⁵⁵
5. Sailing Paper's website touts the tariff benefits of importing thermal paper identified as "Made in Malaysia."⁵⁶
6. [NARRATIVE] indicate that Sailing Paper was established in Malaysia "specially" for the purpose of avoiding antidumping duties, and that the Sailing Paper's product is converted from paper produced by [COMPANY NAME].⁵⁷
7. The Importers reported no safeguards against improper transshipment.
8. Strong Medical and Vesta STL's supplier, Wingle (also doing business as Actan), was found to be transshipping Chinese thermal paper through Malaysia in a previous EAPA investigation.⁵⁸

CBP is relying on this information to conclude that Wingle is unable to produce the thermal paper sold to the Importers, in accordance with the scope of the *Orders*, and is instead importing Chinese-origin thermal paper into Malaysia through known Chinese suppliers of thermal paper.

In sum, CBP finds that there is substantial evidence that Chinese-origin thermal paper was imported by the Importers into the United States during the POI by evasion by means of transshipment through Malaysia, and that said thermal paper is covered by the *Orders* on thermal paper from China. Consequently, the required cash deposits were not collected on the merchandise as of the onset of this investigation.⁵⁹

⁵¹ See Allegations at Exhibit 18.

⁵² See Vesta STL's 2370 CF28 Response at Exhibit 2E and Strong Medical's CF28 Response at Exhibit 2e.

⁵³ See Allegations at 11-12 and Exhibits 19 and 20.

⁵⁴ *Id.* at 15 and Exhibits 34 and 27.

⁵⁵ *Id.* at Exhibit 28.

⁵⁶ *Id.* at Exhibit 29 and 30.

⁵⁷ *Id.*

⁵⁸ See Notice of Initiation at 7.

⁵⁹ The rate applicable to these entries are the China-wide entity rate for the *Orders* on thermal paper from China, unless otherwise specified by the Department of Commerce.

IV. Actions Taken Pursuant to the Affirmative Determination of Evasion

Considering CBP's determination that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries subject to this investigation until instructed to liquidate these entries. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP will also evaluate the Importers' continuous bonds in accordance with CBP's policies and may require single transaction bonds as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



for Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade